

23SMCV01280 23SMCV01280

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-28

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

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CASE NUMBER

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MATTER

Request

for Default Judgment

This case arises from allegations of an unlawful detainer. On March 20, 2023, Plaintiff PPF OFF 150 N Robertson Blvd, LP ("Plaintiff") brought suit against Defendant Warren Lent M.D. ("Defendant") and Does 1 to 10. Defendant was served with a copy of the summons and complaint via substitute service on June 3, 2023. Default was entered against Defendant on July 24, 2023, and the Doe Defendants were dismissed on March 11, 2026.

Judgment for possession was issued on August 11, 2023. A writ of execution issued on September 5, 2023 and was returned on October 9, 2023.

Plaintiff now requests a default judgment for damages against Defendant in the amount of \$117,624.22, which is composed of past due rent in the amount of \$44,935.34, holdover damages in the amount of \$34,226.34, prejudgment interest in the amount of \$15,727.37, costs in the amount of \$1,156.75, and attorneys' fees in the amount of \$21,578.42.

A. Damages

Plaintiff's

Complaint and the Three-Day Notice seek \$44,935.34 in past due rent plus holdover damages in the amount of \$261.00 per day. (See Complaint ¶¶ 12-13 and Ex. 2.) Therefore, Plaintiff does not seek damages in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; Levine v. Smith (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

Plaintiff also seeks holdover damages in the amount of \$34,226.34, representing \$215.26 per day for the 159 days from February 10, 2023 (the date the 3-day notice was served) through November 1, 2023. (Badertscher Decl. at ¶¶ 9, 11-12.)

There are still errors in Plaintiff's calculations, as there are 264 days from February 10, 2023 to November 1, 2023, not 159 days as asserted.

Moreover, Plaintiff has not explained the discrepancy between the \$261 fair market rental per day alleged in the Complaint and the \$215.26 sought now. In light of Plaintiff's recurring calculation errors, and the fact that Plaintiff does not clearly specify what the base monthly rent was, the Court does not have confidence that the holdover damages were accurately calculated.

B. Prejudgment Interest

Plaintiff seeks prejudgment interest in the amount of \$15,727.37 on the past due rent balance of \$44,935.34 at the rate of 10% per annum for the 159 days from February 10, 2023 through November 1, 2023, pursuant to the terms of the lease. Indeed, paragraph 38 of the lease provides for 10% interest on any overdue rent amount.

However, there are errors in the calculations. As discussed above, there are 264 days from February 10, 2023 to November 1, 2023, not 159.

Moreover, $\$44,935.34 \times 10\% \div 365 \text{ days} = \12.311 daily interest. $\$12.311 \times 159 \text{ days} = \$1,957.46$. $\$12.311 \times 264 \text{ days} = \$3,250.12$.

Thus, Plaintiff has not adequately substantiated the requested \$15,727.37 in prejudgment interest.

C. Attorneys' Fees and Costs

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).) Code of Civil Procedure section 1021 provides "[e]xcept as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties [...]" Similarly, Civil Code section 1717 provides "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).)

The Code of Civil Procedure defines the "prevailing party" as follows:

[T]he party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if

allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code

Civ. Proc., § 1032, subd. (a)(4).)

Plaintiff seeks \$21,578.42

in attorneys' fees as authorized by Section 45 of the Lease. Section 45 of the Lease provides:

45. Attorney's Fees

In the event that Landlord should bring suit for the possession of the Premises, for the recovery of any sum due under this Lease, or because of the breach of any provision of this Lease, or for any other relief against Tenant hereunder, or in the event that Tenant shall bring any action for any relief against Landlord arising out of this Lease, then all costs and expenses, including reasonable attorney's fees, incurred by the prevailing party therein shall be paid by the other party whether or not the action is prosecuted to judgment. Should Landlord be named as a defendant in any suit brought against Tenant in connection with or arising out of Tenant's occupancy hereunder, Tenant shall pay to Landlord its costs and expenses incurred in such suit, including reasonable attorney's fees.

Plaintiff advances

the attorney Declaration of Sacha V. Emanuel, attached to which are invoices itemizing attorneys' fees in the amount of \$18,160 as follows:

Mar-24

\$120.00

May-24

\$2,160.00

Jul-23

\$960.00

Aug-23

\$3,480.00

Sep-23

\$1,560.00

Oct-23

\$1,520.00

Nov-23

\$240.00

Jan-26

\$1,040.00

Feb-25

\$80.00

Feb-26

\$80.00

Mar-26

\$1,440.00

May-25

\$480.00

Jun-25

\$40.00

Jul-25

\$600.00

Sep-24

\$80.00

Sep-25

\$40.00

Oct-24

\$3,360.00

Nov-24

\$240.00

Nov-25

\$400.00

Dec-25

\$240.00

Thus, Plaintiff

has only substantiated attorneys' fees in the amount of \$18,160.

Plaintiff also requests \$1,156.75 in costs composed of \$437.25 in filing fees, \$719.50 in process server fees. (CIV-100.)
Plaintiff's request for costs will be granted,

as Plaintiff is the prevailing party in this action. (Code Civ. Proc., § 1032,
subd. (a)(4).)

CONCLUSION

For the foregoing

reasons, Plaintiff's request for default judgment is denied without prejudice.

Unless Plaintiff

waives notice, the Clerk of the Court shall provide notice of the Court's ruling.

DATED: August 28, 2026 /s/_____

Michael

E. Whitaker

Judge

of the Superior Court